Case History Report

For: Ottawa **Case No.:** CV-15-00063457-0000

Case Opened Date: 24-FEB-2015 **Age:** 827 Days **Case Type:** MV **Case Timeline:** NN

Case Status: IN-ACTIVE **Seized Date:** **Case Center:** N

Case Language: English **Official:**

Case Notes:

Class Proceeding file: settled per T. Shillington
Justice McNamara seized

PARTIES / REPRESENTATION

Party Name	Type	Seq.	Disposed Date	Representation / Date	
LIU, YANJUN	Plaintiff	1		TIERNEY, FRANK CHARLES	24-FEB-15
LIN, JIAN XIN	Plaintiff	2		UNREPRESENTED	24-FEB-15
LIU, JOYCE	Plaintiff	3		UNREPRESENTED	24-FEB-15
CITY OF OTTAWA	Defendant	1		SHILLINGTON, TERRENCE RAYMON	06-MAR-15
THE ESTATE OF DAVID WOODARD	Defendant	2		SHILLINGTON, TERRENCE RAYMON	06-MAR-15
VIA RAIL CANADA INC.	Defendant	3		WILSON, JAMES DOUGLAS	29-APR-15

DOCUMENTS

Date Document Filed	Document Description Notes	Filed by	Filed against
24-FEB-15	Statement of Claim	PL1 PL2 PL3	
24-FEB-15	Affidavit of litigation guardian	PL1 PL2 PL3	
06-MAR-15	Notice of Intent to Defend WS	DF1 DF2	
29-APR-15	Notice of Intent to Defend WS	DF3	
21-MAY-15	Affidavit of Service	DF3	
21-MAY-15	Notice of Intent to Defend error made on initial noid filed	DF3	
07-DEC-15	Statement of Defence and Crossclaim	DF1 DF2	
07-DEC-15	Affidavit of Service	DF1 DF2	
26-OCT-16	Statement of Defence and Crossclaim	DF3	
26-OCT-16	Statement of Defence to Crossclaim WS	DF3	
03-FEB-17	Statement of Defence to Crossclaim	DF1 DF2	DF3
01-JUN-17	Mediator Report O W only		
06-JUN-17	Motion Record	PL1 PL2 PL3	

Case History Report

* - document has a related attachment

EVENTS and RELATED ORDERS

Event Date	Time	Event Type	Room	Judge
Event Result		**Event Notes**		

Order Date	*Order Notes*	*Order*	*Parties Affected*

17-JUN-15	04:45 PM	Case conference	HOLDING CASE MANAGEMENT	Mr Justice JAMES MCNAMARA
Ordered into Case Management O W only		case management rule 77 to apply to 14-62660, 14-59864 & 14-59864A1, 15-63464, 14-61186, 15-63457, 14-62674, 14-60427, 14-60427A1, 15-63465, 15-63463, 14-60287, 14-62061, 14-538 (Kingston), 14-62667 & 14-SC-13291.		

17-JUN-15	*Ordered into Case Management O W only*	*case management rule 77 to apply to 14-62660, 14-59864 & 14-59864A1, 15-63464, 14-61186, 15-63457, 14-62674, 14-60427, 14-60427A1, 15-63465, 15-63463, 14-60287, 14-62061, 14-538 (Kingston), 14-62667 & 14-SC-13291.*	*LIU, YANJUN PL1* *LIN, JIAN XIN PL2* *LIU, JOYCE PL3* *CITY OF OTTAWA DF1* *THE ESTATE OF DAVID WOODARD DF2* *VIA RAIL CANADA INC. DF3*

16-MAY-17	09:00 AM	Med Sess - Med Selected by Parties	MEDATION ROOM	The MEDIATOR
Mediation Completed-Partially Settled O W only		MEDIATOR, B. CARROLL, CROSSCLAIM NOT SETTLED		
06-JUN-17	08:00 AM	Motion (unopposed/consent)	Holding CV Basket Motions	Mr Justice Holding CV Basket Motion
Order		INFANT SETTLEMENT June 27/17 - settlement approved. draft order signed		

* - order has a related attachment

ORDERS (not attached to an event)

Order Date	Official Notes	Order	Parties Affected
26-JUN-2017	Mr Justice JAMES MCNAMARA ORDER SCANNED IN P: DRIVE... THIS COURT ORDERS THAT THE SUM OF $20,000.00 (NET OF MANDATORY DEDUCTIBLE OF $18,692.59 AND INCLUSIVE OF INTEREST), SHALL BE PAID BY THE DEFENDANTS, CITY OF OTTAWA, THE ESTATE OF DAVID WOODARD, AS REPRESENTED BY TERRY WOODARD.... SEE HARD COPY	Order	LIU, YANJUN PL1 LIN, JIAN XIN PL2 LIU, JOYCE PL3 CITY OF OTTAWA DF1 THE ESTATE OF DAVID WOODARD DF2 VIA RAIL CANADA INC. DF3

CROSS REFERENCES

Case Number	Court ID	Short Title
CV14000598640000	04700	BLEAKNEY et al v. THE CITY OF OTTAWA et al
CV140005986400A1	04700	BLEAKNEY et al v. THE CITY OF OTTAWA et al
CV14000602870000	04700	HUMAYUN et al v. CITY OF OTTAWA et al
CV14000604270000	04700	MORE et al v. THE CITY OF OTTAWA et al

Case History Report

CV140006042700A1	04700	MORE et al v. THE CITY OF OTTAWA et al
CV14000611860000	04700	KUNAKA v. THE CITY OF OTTAWA et al
CV14000620610000	04700	SROUR et al v. THE CITY OF OTTAWA et al
CV14000626670000	04700	THANGARAJAH et al v. THE CORPORATION OF THE CITY OF OTTAWA et al
CV14000626740000	04700	MCBEAN v. THE CITY OF OTTAWA et al
CV14000626800000	04700	BERNARD et al v. THE CITY OF OTTAWA et al
CV15000634630000	04700	REVELLS et al v. CITY OF OTTAWA et al
CV15000634640000	04700	GONGA et al v. CITY OF OTTAWA et al
CV15000634650000	04700	NJIHIA et al v. CITY OF OTTAWA et al

CASE STATUS

Date	Status
24-FEB-15	ACTIVE
31-MAY-17	IN-ACTIVE

TIMELINES

Issue Date	Timeline	Cancelled	Issued	Adjusted